

Anil Kumar Singh v. M.D., U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 11 September 2013 · WRIT - C No. 48997 of 2013 · **Citation not quashed; time to pay; Clause 6.5 reserved.**

HEADNOTE

A recovery citation for electricity dues is not illegal where the writ challenges only the citation and not any bill or assessment. Time to deposit may be granted, without prejudice to a Clause 6.5 complaint against an incorrectly issued bill or any other statutory remedy under the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Anil Kumar Singh challenged a recovery citation dated 12 September 2012 for Rs. 3,56,240 as electricity dues. He pleaded that supply had been disconnected on 28 October 2009, yet bills continued to issue, and that he had been detained in civil prison on 9 September 2013. The writ did not challenge any electricity bill or assessment. The citation was founded on a recovery certificate of the Executive Engineer. Counsel then sought reasonable time to deposit the entire amount.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

recovery-citation-and-bill-complaint

HOLDING

A recovery citation for electricity dues, issued on the Executive Engineer's recovery certificate, is not illegal where the writ does not challenge any electricity bill or assessment. Deposit of the demanded amount as directed is without prejudice to a complaint against an incorrectly issued bill under Clause 6.5 of the Electricity Supply Code, 2005, or any other statutory remedy under that Code. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER POST-DISCONNECTION BILLS OR THE DEMANDED DUES WERE INCORRECTLY ISSUED

Left to a Clause 6.5 complaint or other Code remedies, without prejudice to the directed deposits. ¶ 1